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File No.: EXP202210208

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 15/09/2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of Article 5.1.c) of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the respondent has installed a camera next to the access to their home which, due to its location and orientation, is capable of capturing images of the public road that runs alongside said home and the entrance to the complainant's home.

The complainant provides images showing the location of the camera and the area affected by its orientation.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 06/10/2022 by C.C.C., with DNI ***NIF.2 as recorded in the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On December 5, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On April 4, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, C/ Jorge Juan, 6, 28001 – Madrid, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

After notifying the initiation agreement, the respondent submitted a written statement in which they summarized that after receiving a first letter around October, they quickly responded electronically but that the format in which they sent it was not correct. They explained in that first letter that the camera was fake and only served to deter potential ill-intentioned individuals, thus protecting their home and children, as the camera remained disconnected 24 hours a day, was always off, and that once they received the first letter, they also proceeded to remove it.

FIFTH: On April 28, 2023, a resolution proposal was made, proposing:

That the Director of the Spanish Agency for Data Protection proceed to archive the actions initiated against B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It is recorded, according to the statement of the complainant, that the respondent had installed a camera next to the access to the home which, due to its location and orientation, was capable of capturing images of the public road and the entrance to the complainant's home.

SECOND: It is recorded, according to the statement of the respondent, that this camera has only deterrent effects, being disconnected 24 hours a day, thus not recording images, and therefore, no

processing of personal data has taken place, having already been removed.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, with subsidiary character, by the general rules on administrative procedures."

II

Regarding the allegations presented, the following responses are provided:

- The responding party alleges that after receiving an initial letter around October, they quickly replied via electronic headquarters but that the format in which they sent it was not correct. In that first letter, it was explained that the camera was fake and only served to deter potential ill-intentioned individuals, thus protecting their home and children, as the camera remained disconnected 24 hours a day, was always off, and that once the first letter was received, they also proceeded to remove it.

In this regard, this Agency reminds that, even in the case of a "simulated" camera, it must be oriented preferably towards private space, since it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

However, in the present case, since the camera was never connected and therefore is not capturing images, there is no data processing taking place, and thus no infringement of data protection regulations is observed.

III

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the rest of the principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out.

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In the present case, since it is a non-operational camera, therefore simply deterrent, not connected

and not processing data, it is considered that the filing of the present sanctioning procedure is appropriate.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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